

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 06/10/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ID: 161 950 4895

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Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-02352

CASE NAME: DANIEL GOMEZ VS. JEREMY TEMAN

***TRIAL SETTING CONFERENCE**

FILED BY:

TENTATIVE RULING:

See Lines 22 & 23

2. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 11

3. 8:31 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLS DAVIS VS. ANN CHAMBERS
*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON MOTION IN RE:
INTERLOCUTORY JUDGMENT OF PARTITION BY SALE
FILED BY:
TENTATIVE RULING:

See lime 12

4. 9:00 AM CASE NUMBER: C25-03310
CASE NAME: BLANE PHILLIPS VS. MATTHEW DAVIS
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 14

5. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
*CASE MANAGEMENT CONFERENCE TO TRAIL MOTION TO STRIKE & HEARING ON DEMURRER
FILED BY:
TENTATIVE RULING:

See lines 15 & 16

6. 9:00 AM CASE NUMBER: C25-03518
CASE NAME: AGUSTIN ARGENAL VS. KIA AMERICA, INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See line 18

Law & Motion

7. 9:00 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: FERREIRA, PHILIP
TENTATIVE RULING:

Before the Court is a motion for leave to amend and supplement complaint filed by plaintiffs Phillip Ferreira and Crystal Ferreira. For the reasons set forth, the motion is **granted**, as set forth below.

Background

This action began as a property dispute between adjoining landowners (plaintiffs the Ferreriras and defendants the Myers) over the construction of a fence by the Myers that the Ferreriras allege encroaches on their property, as well as other related claims. (Compl. filed 4/4/2022.) In July 2022, the Myers filed a cross-complaint against the Ferreriras alleging that the Ferreriras trespassed on their property and disparaged their title. The Myers also allege that the Ferreriras have improperly graded their property or failed to install or maintain erosion control measures, allowing stormwater runoff to cause flooding, erosion and other damages to the Myers' property. (Myers X-Compl. filed 7/14/2022.)

In July 2024, with leave of court, the Ferreriras filed a cross-complaint against another property owner, cross-defendant Minou Barabi. The Ferreriras' first amended cross-complaint ("Ferreira FACC") filed in September 2024 alleges claims for equitable indemnity, contribution, and declaratory relief against Barabi, seeking indemnity or contribution for any liability the Ferreriras may have to the Myers resulting from the Myers' claims of erosion and related property damage alleged in the Myers cross-complaint. (Ferreira FACC filed 9/26/2024.) The Ferreira FACC alleges that stormwater runoff from Barabi's property passed over the Ferreriras' property and onto the Myers' property, causing or contributing to the damage to the Myers' property. (Ferreira FACC ¶¶ 17-22.)

In March 2025, Barabi filed a cross-complaint against the Ferreriras and Bryan Walter Fuery and Rhonda Fuery ("Barabi X-Compl."). The Barabi cross-complaint alleges claims for breach of contract and negligence as well as indemnity and contribution. The Barabi cross-complaint is based in part on the CC&Rs for the Montair community in Danville, to which Barabi alleges she and the Barabi cross-defendants are parties and which impose duties regarding landscape maintenance and drainage facilities, and the Town of Danville Municipal Code provision for grading permits. (Barabi X-Compl. ¶¶ 13-15.) Answers by the cross-defendants named in the Barabi cross-complaint were filed at the end of April 2025.

Legal Standards

A. Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (*See* Code Civ. Proc. § 576.) (*See also* Code Civ. Proc. § 473(a).) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert

a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) *Fair v. Bakhtiari* (2011) 195 Cal.App.4th 1135, 1147 and *Thompson Pacific Construction, Inc. v. City of Sunnyvale* (2007) 155 Cal.App.4th 525, 544-545 [court may be found to have abused its discretion in denying leave if no prejudice is shown].)

B. Leave to Supplement Complaint

A party may also move to supplement a complaint to allege matters arising after the complaint was filed. (Code Civ. Proc. § 464(a).) "[T]he right to file a supplemental complaint can be exercised only with reference to matters which may be consistent with and in aid of the case made by the original complaint, and it is not allowable to substitute a new and independent cause of action by way of a supplemental complaint. . . . It is no objection to a supplemental complaint that different or additional relief is asked for. [Citation omitted.] Indeed, the object of the supplemental complaint is to obtain additional or different relief without resort to a new trial." (*Jacob v. Lorenz* (1893) 98 Cal. 332, 337-338.) Whether to grant leave to supplement is in the Court's discretion based on a showing that the "ends of justice" will be served. (*Plummer v. Superior Court* (1963) 212 Cal.App.2d 841, 843-844.)

C. Leave to File Late Cross-Claim

The Myers and Barabi argue the claims made against them in the proposed FAC should have been asserted by Plaintiffs in a cross-complaint when they answered their cross-complaints in August 2022 (Myers) and April 2025 (Barabi). Cross-claims arising from the same transaction or events existing at the time an answer is filed are compulsory and must be filed with the answer. (See, e.g., Code Civ. Proc. §§ 426.10(c) [defining "related cause of action"], 426.30(a) [cause of action party has "at the time of serving his answer"], and 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal. App. 3d 94, 97 [reversing denial of motion for leave to file compulsory cross-complaint].) Failure to assert a compulsory cross-claim can result in forfeiture of the claim. (Code Civ. Proc. § 426.30(a).)

A party who fails to plead a compulsory cross-claim may seek leave to file a cross-complaint to assert the claim "at any time during the course of the action." (Code Civ. Proc. § 426.50.) Inadvertence, mistake, neglect, or other cause does not preclude the Court from granting leave to file the cross-complaint. (Code Civ. Proc. § 426.50.) So long as the party acted in good faith, the Court "shall grant, upon such terms as may be just to the parties" leave to file the cross-complaint. (*Id.* [emphasis added].) The statute's provisions must be "liberally construed to avoid forfeiture of causes of action." (*Id.*)

Analysis

Plaintiffs ask for leave to file a "first amended and supplemented complaint" ("FAC" for convenience) which amends the existing claims and supplements the claims based on events they assert arose post-April 2022, and also after they answered the Myers cross-complaint. (See Deese Decl. Exh. 1; Reply p. 7.) The Myers and Barabi have opposed the motion; the Fuerys have not.

A. The Proposed FAC

The FAC adds Plaintiffs in their capacities as trustees of their family trust and the Myers in their capacities as trustees of their family trust. It adds as defendants Barabi and the Fuerys, who are

already parties to the action, as well as the Montair Property Owners Association ("HOA"). The FAC alleges various provisions of the CC&Rs (FAC ¶¶ 19-24, 33-39) on which the new claims in the FAC are in part based. It adds (a) a fourth cause of action for breach of the CC&Rs against the Myers and Barabi; (b) a fifth cause of action for private nuisance against the Myers and Barabi; (c) a sixth cause of action for negligence against the Myers and Barabi; (d) a seventh cause of action against Barabi for declaratory relief; and (e) an eighth cause of action against all defendants (the Myers, Barabi, the Fuerys, and the HOA) for declaratory relief. The new fourth through sixth causes of action are founded on facts regarding flooding after rains, drainage, and stormwater runoff, disputes that have been at issue in the case through the Myers and Barabi cross-complaints; opposing parties do not contend otherwise. The Court agrees that the proposed FAC cannot be characterized as merely restating Plaintiffs' claims pled in the original complaint; the FAC materially modifies and expands the claims from the original complaint, though, as set forth below, the additional facts and issues have been raised in other subsequent operative pleadings and answers.

B. Sufficient Compliance with Rule 3.1324

The Court finds the motion, the Deese Declaration, and the reply taken together demonstrate sufficient compliance with Rule 3.1324 of the California Rules of Court to make the showing required for motions for leave to amend. (Cal. R. Ct., Rule 3.1324(a)(2), (a)(3), (b)(1)-(b)(4).) To the extent the Myers contend that the Deese Declaration had to provide more extensive details regarding specific facts discovered and the timing of their discovery, a fair reading of the declaration is the relevant facts were discovered in 2024, confirmed in the reply referring to the results of expert investigation in February 2024. (Deese Decl. ¶¶ 9, 10; Reply p. 11, l. 21.) Additional elaboration by a supplemental declaration with a continuance or denial of the motion without prejudice is not warranted or would not be in the interests of justice or the parties in this case. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

C. Lack of Good Faith and Excuse for Delay

"[W]hat constitutes 'good faith'-or lack of it-under Code of Civil Procedure section 426.50 must be determined in light of and in conformity with the liberality conferred upon the trial courts by the section" (*Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902.) The principal of liberality under the statute "requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint" (*Id.*)

The Myers contend that the Deese Declaration is inadequate because it does not explain why it took until February 2026 for Plaintiffs to move to amend and supplement if they discovered the facts on which the amendments and supplementation are based two years earlier in 2024. They suggest some lack of good faith or tactical decision accounts for the delay. (*See Silver Organizations, supra*, 217 Cal.App.3d at 100 [explaining bad faith implies, among other things, a failure or refusal to fulfill a duty not as a result of an honest mistake, bad judgment or negligence, but by a sinister motive or based on a design or intent to mislead or deceive].) Bad faith can mean an action or tactic made with improper motive. (*County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan LLP* (2025) 115 Cal.App.5th 489, 512 [bad faith found where the defendant deliberately waited for over a year to seek to file the cross-complaint "until after the merits of the underlying conduct were decided against Quinn."].)

The operative pleadings reflect an evolving and expanding set of claims as new parties were added,

discovery was conducted, and new theories were asserted by cross-complainants. Evaluating the operative complaint and cross-complaints, the Deese Declaration, including the admission that Plaintiffs became aware of facts pertinent to the amendment/supplement in 2024, and Plaintiffs' reply to the oppositions, which indicates the flooding issues which they seek to allege in supplemental allegations in the proposed FAC arose in and after September 2022 (Reply. 9. 7. L. 22 – p. 8. L. 2), the Court acknowledges there was delay by Plaintiffs in amending and supplementing their claims. There may have been neglect or mistake in Plaintiffs not filing a cross-complaint in August 2022 with their answer to the Myers cross-complaint, not filing a cross-complaint in April 2025 with their answer to the Barabi cross-complaint, and not making the motion to amend and supplement the complaint sooner after the September 2022 flooding and after the February 2024 expert analysis.

Nevertheless, the record does not support a finding that the delay was deliberate, tactical, made with ill motive or in bad faith. The Court notes that new counsel for Plaintiffs first appeared in the case at the end of June 2025, after the answers to the Myers and Barabi cross-complaints had been filed. Within seven months, Plaintiffs filed this motion. Delay alone is generally not a ground for denying leave to amend in any event. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].)

D. Prejudice

The oppositions generally assert prejudice based on the expansion of the claims and delay. They do not show how they would be prejudiced given the delay in the trial date and lack of deadlines impacting their designation of expert witnesses and conduct of discovery. Under the circumstances, the fact that additional experts or more discovery may be required is not sufficient to show prejudice precluding granting the motion.

Even accepting that issues of "drainage, grading, stormwater, erosion, Town of Danville, [the HOA], and CC&Rs" were raised in the Myers cross-complaint (Myers Opp. p. 10, ll. 14-16), that the FAC materially expand Plaintiffs' claims and remedies in dispute (Myers Opp. pp. 10-11), and that the Ferreira FACC against Barabi filed in September 2024 alleges claims against Barabi founded factually at least in part on drainage and stormwater runoff issues (Ferreira X-Compl. ¶¶ 13-22), under the circumstances and based on the record on this motion, the Court does not find the delay is prejudicial. Those facts indicate that issues regarding flooding, drainage, stormwater runoff, grading, the CC&Rs for the Montair community, and the applicable Municipal Code have been raised and at issue in the case for some time.

The February 26, 2026 stipulation by the parties jointly asked the Court to vacate the May 2026 trial date, and either reset the trial to "no earlier than mid-December 2026" or set a case management/trial setting conference. (2/26/2026 Stip. ¶ 2.) (*See also* Stip. p. 4, l. 26 – p. 5, l. 2 [seeking continuance of trial and related deadlines and stipulating that "no Party would suffer prejudice by the requested continuance," and "the interests of justice are best served by continuing the trial date."].) The Stipulation confirms that even before a determination of this motion, the factual issues were on the parties' radar and part of the discovery and litigation pending and anticipated by the parties; the parties appear to have anticipated the likelihood this motion would be granted. The trial setting conference is scheduled for July 28, 2026, and no trial date is presently

scheduled. Discovery is ongoing. The five-year period from commencement of the case will not run until April 2027, roughly 10 months from the hearing on this motion. (Code Civ. Proc. § 583.310.) The parties already agreed that the trial date could be continued to at least mid-December 2026. (2/26/26 Stip. ¶ 2.) There is insufficient evidence that allowing the proposed FAC, which may mean the trial date is not set until March 2027 rather than mid-December 2026, is prejudicial to the parties.

This case is unlike the cases relied on by opposing parties in which the delay was found to be prejudicial and sufficient to support the denial of the motion. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery]; *Duchrow v. Forest* (2013) 215 Cal.App.4th 1359, 1377-1380 [denying request for leave to amend complaint made on the fourth day of a five day trial with no explanation for the delay]; *City of Stanton v. Cox* ('989) 207 Cal. App. 3d 1557, 1564 ["A party who waits 18 months before attempting to amend, and then does so only after trial has commenced, and who offers no excuse for the failure, can hardly complain when the request to amend is denied. Under these circumstances, we cannot say the trial judge abused his discretion." (Emphasis added.)]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [denial of request for leave to amend made over five years after suit commenced, and during oral argument on summary judgment motion]; *Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739 [four and a half year delay before seeking leave to amend to add federal claim, a claim that could have been made at the outset of litigation, and plaintiff sought to amend only after trial court indicated intention to grant summary judgment]; *Record v. Reason* (1993) 73 Cal.App.4th 472, 486 [delay of three years].)

E. Myers' Request for Conditions

The Myers list conditions they request at page 14 of their opposition. As to Item 1, the Court will not condition leave to amend on Plaintiffs' pleading compliance with any alternative dispute resolution requirements under the CC&Rs and/or Davis-Stirling Act. The Myers can raise any such deficiency by demurrer, motion to strike or other appropriate challenge if warranted. (Myers Opp. p. 13, ll. 11-17.) As to Items 2 and 3, nothing in this ruling granting leave to amend would preclude any of the defendants from filing a new answer responding to the new pleading, and as set forth above, the Court's ruling on this motion is limited to allowing the FAC to be filed.

As to the remainder of Item 2 regarding setting a discovery schedule, the Court will not address the issue on this motion. The Myers can raise discovery timing at the trial setting conference set for July 28, 2026 if appropriate. As to Item 4 on discovery cost-shifting, though Code of Civil Procedure sections 473(a) and 576 grant the Court authority to impose terms and conditions on allowing leave to amend, the discovery conditions sought by the Myers are too vague and the record too factually inadequate to impose the conditions the Myers request.

Conclusion and Ruling

The Court **grants** Plaintiffs' motion. Plaintiffs are granted leave to file a first amended and supplemental complaint. Leave to amend as granted by this ruling includes leave (a) to make modifications of the proposed FAC to incorporate revisions narrowing paragraph 11 (Myers Opp. p. 11, ll. 13-22), (b) to plead with specificity the post-complaint flooding dates and attach the referenced exhibits (see in particular proposed FAC ¶¶ 1, 37, 39, 81, 83, 101, 113, 117 as noted in Reply p. 7, l. 24

– p. 8, l. 20), (c) to allege facts as to the basis for naming Plaintiffs or the Myers in their capacities as trustees of the respective family trusts, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 18-20), and (d) to allege compliance with any pre-litigation alternative dispute resolution requirements that may apply under the CC&Rs and attach a certificate regarding same, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 11-17).

Nothing in this ruling is a ruling on the sufficiency or the merits of the claims or allegations of the proposed FAC or the final version of the first amended and supplemental complaint that Plaintiffs file, or determines or limits any defenses parties may raise in response to any first amended and supplemental complaint Plaintiffs file, except as to the procedural ruling that Plaintiffs shall be allowed to amend, supplement and plead omitted cross-claims by filing an amended and supplemental first amended complaint as they request in their motion pursuant to Code of Civil Procedure sections 426.50, 464, 473(a), and 576. (*See generally Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["preferable practice" is allowing pleading amendment and allowing "the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

8. 9:00 AM CASE NUMBER: C23-00888
CASE NAME: ROSE WRONA VS. SAGE VETERINARY CENTERS, LP
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: ROSE MEQUITTA WRONA and JAMES MAGEE, ETC., ET AL.
TENTATIVE RULING:

Unopposed. Proposed Order will be signed by the Court.

9. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. FIRST AMERICA AUTOMOTIVE, INC., A DELAWARE CORPORATION
***HEARING ON MOTION IN RE: HEARING ON THE FINAL APPROVAL OF SETTLEMENT**
FILED BY: ILIANA REYES,, on behalf of herself and all others, etc.
***TENTATIVE RULING:**

Unopposed. Proposed Order will be signed by the Court.

10. 9:00 AM CASE NUMBER: C24-02496
CASE NAME: FEDERICO BOJORQUEZ VS. HERMINIA MARTINEZ
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MARTINEZ, HERMINIA
TENTATIVE RULING:

Continued by the Court to June 17, 2026.

11. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
***HEARING ON MOTION IN RE: TO ABATE ACTION**
FILED BY: TAMPICO HEALTHCARE CENTER, LLC
TENTATIVE RULING:

Motion withdrawn by Attorney Schrader.

12. 9:00 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLS DAVIS VS. ANN CHAMBERS
***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE**
FILED BY: SOLLS DAVIS, VICKI LYNN
TENTATIVE RULING:

Unopposed – granted.

13. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING IN RE: SPECIAL MOTION FOR DECLARATORY RELIEF
FILED BY: CARTER HALLOCK
TENTATIVE RULING:

Plaintiff Carter Chapin Hallock (“Plaintiff”) has filed the instant special motion for declaratory relief, which asks the Court to declare, pursuant to Code of Civil Procedure section 1060, that he is a 49% owner of CMOUTS LLC, based on an alleged written contract attached to the complaint as Attachment A.

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties. . . including a determination of any question of construction or validity arising under the instrument or contract.

As the statutory authority provides, a claim for declaratory relief must be asserted in “an original action or cross-complaint,” not as a standalone motion. (See Code of Civ. Proc., § 1060.) Here, Plaintiff’s operative complaint does not contain a claim for declaratory relief, and the instant “special motion” is not a recognized procedure for asserting declaratory relief.

Plaintiff’s special motion for declaratory relief is DENIED.

14. 9:00 AM CASE NUMBER: C25-03310
CASE NAME: BLANE PHILLIPS VS. MATTHEW DAVIS
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: DAVIS, MATTHEW
TENTATIVE RULING:

Plaintiff, Blane Richard Phillips, filed this case on November 12, 2025 against defendants Matthew and Rebecca Davis. The complaint alleges two causes of action, one for breach of a promissory note and the other for common counts. Defendants move to quash service of summons, arguing service did not comply with statutory requirements. The motion is **granted**, as discussed below.

In this case, plaintiff served defendants under Code of Civil Procedure, section 415.20, subdivision (b), which authorizes substitute service in lieu of personal delivery: "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, . . . a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left."

Plaintiff submitted proofs of service by a registered process server showing that the process server, after several attempts to serve defendants personally at 2745 Minert Road, left the summons and complaint with "David Anger," defendants' former roommate who was present at the Minert address on December 28, 2025. The process server then mailed defendants a copy of the same at the Minert address.

"[T]he filing of a proof of service creates a rebuttable presumption that the service was proper," but only if it "complies with the statutory requirements regarding such proofs." (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.)

Defendants argue service was ineffective because they had moved to Maryland in July 2025 and have not returned except for a brief visit in August 2025. Matthew Davis submits a declaration, attaching a copy of a lease agreement for their apartment in Maryland, signed in July 2025. Defendants represent in their declarations that Rebecca has been attempting to sell the Minert Road property, but that she still pays taxes on it and pays for water and garbage due to the fact that a friend still lives there.

In opposition to the motion, plaintiff points out that the process server first attempted to conduct personal service several times. Upon the very first attempt, the individual present represented to the process server that, while the defendants had moved, they "still get mail [at the Minert Road address], which according to him they do forward to them."

The evidence here is not in conflict. Plaintiff argues the several attempts at personal service show due diligence, while defendants argue these attempts do not qualify because the process server knew defendants had moved. Both sides also discuss and cite the same authorities: *Ellard v. Conway*

(2001) 94 Cal.App.4th 540 and *Hearn v. Howard* (2009) 177 Cal.App.4th 1193. Notably, those cases both dealt with service at private post office box rental stores, not service at a former address. However, the relationship that can be inferred here is sufficiently similar because the person residing in the home owned by defendants had a duty to forward mail, particularly if they did not notify the post office of any change.

The declaration of Rebecca Davis states, “we have a friend living at the property.” (Declaration of Rebecca Davis in Support of Motion, ¶15.) Neither Rebecca Davis nor Matthew Davis deny that the friend is the person who received the papers, that defendants “still get mail” at the Minert Road address, or that they the friend did, in fact, forward the papers to them. Neither defendant submits any evidence of having changed their mailing address with the United States Postal Service.

Pursuant to these facts, plaintiff has shown defendants were served at their “usual mailing address” for purposes of section 415.20, subdivision (b). However, the evidence does not indicate reasonable diligence was employed to first attempt to “personally deliver” the summons and complaint. (Code Civ. Proc., § 415.20 (b).) Because such reasonable diligence was required as a condition to substitute service, the motion is granted.

15. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

16. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
MOTION TO STRIKE PORTIONS OF PLTFS COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

17. 9:00 AM CASE NUMBER: C25-03480
CASE NAME: ANNA ROWE VS. LYNN SHAFER
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES**
FILED BY: SHAFER, LYNN FREDERICK
TENTATIVE RULING:

Unopposed –granted.

18. 9:00 AM CASE NUMBER: C25-03518
CASE NAME: AGUSTIN ARGENAL VS. KIA AMERICA, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KIA AMERICA, INC.

TENTATIVE RULING:

Defendant Kia America, Inc.'s Demurrer to Plaintiff Agustin Argenal's Complaint is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall file and serve a first amended complaint within 20 days of notice of entry of this order.

Background

On December 2, 2025, Plaintiff Agustin Argenal filed this Lemon Law action against Kia America, Inc. and Does 1 to 10. (Complaint, ¶ 2.) The Complaint alleges Plaintiff purchased a new 2025 Kia Carnival Hybrid, VIN: KNDNC5KA7S6034839 ("Vehicle") on or about June 3, 2025. (¶ 4.) Defendant offered an express warranty to Plaintiff regarding the Vehicle. (¶ 8.) The sale of the Vehicle was also accompanied by an implied warranty of merchantability and an implied warranty of fitness. (¶ 9.) Defendant is a manufacturer and/or distributor of the Vehicle. (¶ 7.) The Complaint alleges the Vehicle manifested defects and nonconformities, including failure of its battery and/or charging system, within the applicable express warranty period. (¶ 10.) When Plaintiff delivered the Vehicle to an authorized Kia America, Inc. service and repair facility on numerous occasions for repair, Defendant was allegedly unable to conform the Vehicle to the applicable express and implied warranties after a reasonable number of attempts. (¶¶ 11-12.) Defendant subsequently failed to repurchase the Vehicle and make restitution. (¶ 13.) The Complaint alleges a violation of the Song-Beverly Consumer Warranty Act, Civil Code sections 1790 et seq., "the Act." (¶ 5.)

On February 6, 2026, Defendant filed a demurrer to the complaint for failure to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). Defendant argues that the Act does not apply because the Vehicle was purchased from an Oregon dealership, and title passed outside of California as a matter of law, which precludes Plaintiff from stating a claim under the Act. Defendant's demurrer is accompanied by a Request for Judicial Notice of the "Retail Buyer's Order," which Defendant argues shows an Oregon purchase with Oregon title and registration processing and no contractual requirement of delivery in California.

On May 26, 2026, Plaintiff filed an opposition. Plaintiff argues that the complaint adequately alleges all elements of a cause of action under Civil Code section 1793.2(d)(2), and that because the Act applies only to California-purchased vehicles, the allegations that the Vehicle is subject to the Act reasonably imply a California sale location. (See, e.g., Complaint ¶¶ 5-8; 13-15.) Plaintiff asserts that the Retail Buyer's Order is not the proper subject of judicial notice under Evidence Code section 452(h) because it was not referenced in the complaint and cannot be used to resolve disputed factual issues. In the alternative, Plaintiff requests leave to amend the complaint to allege that the seller delivered the Vehicle to Plaintiff in California.

On June 3, 2026, Defendant filed a reply. Defendant argues that Plaintiff's reliance on defined terms under the Act constitutes a legal conclusion the Court need not accept as true at the pleading stage,

and further argues that Plaintiff's allegation of a purchase date is sufficient to invoke the incorporation by reference doctrine and permit the Court to take judicial notice of the Retail Buyer's Order. Defendant argues that even if Plaintiff is given leave to amend, adding an allegation that the Vehicle was delivered in California would not cure the pleading defect because delivery alone does not establish a destination contract under the Commercial Code. Defendant's reply raises the new argument that the Retail Buyer's Order contains an integration clause that supersedes all prior or contemporaneous agreements, thereby precluding Plaintiff from alleging any separate delivery agreement inconsistent with the written terms of the Retail Buyer's Order. Defendant states that the Retail Buyer's Order lists a California address for Plaintiff, which it redacted solely to protect Plaintiff's privacy.

Legal Standard

A demurrer for sufficiency tests whether the complaint states facts sufficient to state a cause of action. (Code of Civ. Proc. § 430.10(e); *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

Discussion

Meet and Confer

Code of Civil Procedure section 430.41 requires that before filing a demurrer, the demurring party must meet and confer with the party who filed the pleading, in person or by telephone, at least five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a).) When the demurrer is filed, it must be accompanied by a declaration stating either that the meet and confer was completed and describing the means by which it occurred, or that the party who filed the pleading failed to respond to the meet and confer request or was unwilling to participate in the process. (Code Civ. Proc. § 430.41(a)(3).)

On January 7, 2026, the date the responsive pleading was due, Defendant filed a declaration under section 430.41(a)(2) stating that it had sent a meet and confer letter to Plaintiff, had not received a response, and was therefore requesting a thirty-day extension to allow that process to occur. Defendant filed its demurrer thirty days later on February 6, 2026, without any declaration explaining whether the parties ever spoke and whether potential amendments were discussed. As a result, the Court has no information regarding whether a meet and confer actually took place.

The Court will nonetheless proceed to the merits of the demurrer. (Code Civ. Proc. § 430.41(a)(4).)

The Complaint Does Not Allege Facts Sufficient to Establish a California Sale

The Song-Beverly Consumer Warranty Act grants new car buyers the right to sue when a manufacturer or retail seller fails to comply with any implied or express warranty. (Civ. Code § 1794, subd. (a).) Importantly for this case, the Song-Beverly Act applies only to vehicles sold in California. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 493.) The Song-Beverly Act is intended to supplement the provisions of the California Uniform Commercial Code, "and thus provisions of the

California Uniform Commercial Code governing sales properly attach to those of the [Song-Beverly Act]." (*Calif. State Electronics Assn. v. Zeos Internat. Ltd.* (1996) 41 Cal. App. 4th 1270, 1276.) Under the California Uniform Commercial Code and the Song-Beverly Act, a "sale" is defined as a passage of title from seller to buyer for a price. (*Id.*; and see Civil Code section 1791(n)(1).) "Section 2401 of the California Uniform Commercial Code governs when and where title passes between seller and buyer." (*Id.*)

While Plaintiff argues that the Vehicle was sold in California such that the Song-Beverly Act applies, the complaint is devoid of factual allegations supporting that conclusion. Plaintiff alleges that he is a "buyer" under the Act, that the Vehicle is a "new motor vehicle" under the Act, and that Defendant is a "manufacturer" under the Act. The Court cannot infer from the mere invocation of defined terms under the Act that the sale occurred in California.

Leave to amend is warranted. Plaintiff has represented that he can allege facts showing the Vehicle was delivered in California. Defendant argues that alleging delivery alone would not cure the defect because delivery alone does not establish a destination contract under Commercial Code section 2401. That may be true as far as it goes. But the Court does not know what specific facts Plaintiff intends to allege. Plaintiff may be able to allege facts going beyond mere delivery bearing on whether title passed in California. The Court find that the better course is to allow the amendment and evaluate the sufficiency of Plaintiff's allegations against Kia once they are before the Court.

Disposition

For the foregoing reasons, Defendant's Demurrer to the Complaint is **sustained with leave to amend.**

Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall file and serve a first amended complaint within 20 days of notice of entry of this order.

19. 9:00 AM CASE NUMBER: MSC16-01426
CASE NAME: RICHMOND COMPASSIONATE VS RICH PAT GROUP
***HEARING ON MOTION IN RE: ORDER AUTHORIZING DIRECT SALE OF RECEIVERSHIP COLLATERAL**
FILED BY: RICHMOND COMPASSIONATE CARE COLLECTIVE A CALIFORNIA CORPORATION
TENTATIVE RULING:

Plaintiff Richmond Compassionate Care Collective's motion authorizing direct sale of receivership collateral to receiver is **denied**.

The Receiver Garib Karapentyan of Capitol Compliance Management was appointed as successor receiver over some of the Defendants' businesses. The receiver is seeking an order authorizing the transfer of the Defendants' businesses currently collateral in the receivership directly to Capitol Compliance Management. In exchange, the receiver proposes to extinguish his claims for all accrued and unpaid receiver compensation and the receiver's certificate no. 2. The receiver's certificate no.1 to Andrew Provencio shall remain in effect. The receiver proposes that the attorney fee lien for \$5,000,000 held by the Plaintiff and any outstanding tax obligations shall be preserved. The Receiver proposes to extinguish all other claims against the collateral.

The Receiver is an interested party and an owner of the Plaintiff. The Court previously

considered whether Garib Karapentyan could be the receiver even though he is not a neutral, and ultimately the Court approved his appointment as Receiver.

There are several problems with this request. First, this motion was served on the parties to this case and the landlord for one of the businesses. But this motion was not served on all interested parties, including Andrew Provencio (who holds a receiver certificate) and any other businesses, entities, or individuals with substantial claims against the collateral businesses. The proposal here would end the need for the receivership and when a receivership is terminated notice must be given "to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it." (California Rules of Court, rule 3.1184(c).)

This motion does not address which individuals or entities have claims against the collateral businesses. For example, the landlord for one of the businesses (Green Remedy) has filed an opposition stating that it is owed \$378,606 in unpaid rent, much (if not all) of the unpaid rent accrued after the current receiver was appointed. Are there other outstanding unpaid rent claims by the other businesses? Are the service and product suppliers for the businesses paid timely or are there other outstanding potential claims and debts? Are these debts incurred before or after the receivership was created? If so, do they count as operating expenses? Are there Labor Code, payroll or employment claims pending? This information might be available somewhere in the receiver's report, but the Receiver has the obligation of explaining the effect of its request to the Court

Further, Plaintiff and the Receiver have not satisfactorily addressed priorities. It is the Court's general understanding that receiver certificates, receiver compensation, operating expenses and governmental taxes are all given priority above other debts. But additional information is needed, with citations to applicable legal authority. What is the priority between the receiver certificate no. 1 and the receiver certificate no. 2? How are operating or administrative expenses treated in terms of priority? And if any such expenses are outstanding, what are those expenses? (The Court believes that payroll expenses would likely be considered operating expenses, but there may be other operating expenses such as unpaid rent.) What priority is given to unpaid receiver compensation when considering these other high priority items? If there are insufficient funds to cover all high priority items, how should any funds be distributed? The Court is aware that the current proposal would not include the exchange of any funds, but given the other likely claims with high priorities such a proposal does not appear equitable or feasible.

Assuming these issues were addressed, the Court is still concerned that it lacks authority to extinguish all liens and claims. Despite the suggestions that the Court could follow a bankruptcy like procedure as set forth in 11 U.S.C section 363, Plaintiff has not cited statutes in California that allow for such a procedure.

While *County of Sonoma v. Quail* (2020) 56 Cal.App.5th 657, 666 provides some support for extinguishing a lien on a property that case is distinguishable. *Qual* involved an abatement proceedings on a property that was a public nuisance. The facts showed that without extinguishing the lien there was no practical way to clean up the property as the receiver could not obtain a loan, but the receiver still needed to abate the nuisance on the property. The objecting party, a bank holding a lien on the property, was given notice of the proceeding and had several opportunities to foreclose on the property and take on the task of clean up, but failed to do so. Here, by contrast, the landlord and other potential claimants have not been given proper notice and it is unclear that an

potential claimants have the ability to run the businesses. Further, this case does not involve a public nuisance.

Defendants William Koziol and Hilltop Community Partners, LLC raise several points in their opposition. To the extent Defendants are seeking to enforce the parties' settlement agreement they may file their own motion requesting enforcement.

John Valdez filed an opposition for himself and Plaintiff Richmond Compassionate Care Collective. It appears that the dispute over governance of Richmond Compassionate Care Collective is ongoing. The Court previously denied Valdez's motion to intervene. Unless Valdez provides a court order showing that he is entitled to control Richmond Compassionate Care Collective or otherwise has a right to intervene here, the Court finds that Valdez does not have standing to object.

20. 9:00 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL**
FILED BY:
TENTATIVE RULING:

Appearance required by counsel for each party for oral argument.

21. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
***HEARING ON MOTION IN RE: CLASS CERTIFICATION**
FILED BY: CANNON, LINDSEY
TENTATIVE RULING:

Denied. The motion is untimely. The matter is set for jury trial on 8/17/2026.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C24-02352
CASE NAME: DANIEL GOMEZ VS. JEREMY TEMAN
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: U-HAUL CO. OF CALIFORNIA
TENTATIVE RULING:

Continued by stipulation of the parties.

23. 9:01 AM CASE NUMBER: C24-02352
CASE NAME: DANIEL GOMEZ VS. JEREMY TEMAN
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES
FILED BY: U-HAUL CO. OF CALIFORNIA
TENTATIVE RULING:

Continued by stipulation of the parties.

24. 9:01 AM CASE NUMBER: C25-01788
CASE NAME: JOSEPH MURPHY VS. LIBERTY UNION HIGH SCHOOL DISTRICT
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR
PRODUCTION OF DOCUMENTS
FILED BY: MURPHY, JOSEPH
TENTATIVE RULING:

Plaintiff's Motion to Compel Verified Responses and Verified Further Responses to Request for Production of Documents, Set 1, Nos.20, 21, 26-41 and 46 is hereby granted, without further objection with verified responses to be served within 20 days from the date of this Order. The requests are limited to sexual contacts by employees, not their entire personnel files and concern for other students' privacy rights can have identifying information redacted.

Courtroom Clerk's Session
Add On

25. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

SEE LINE 26.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C25-02746

CASE NAME: CARTER HALLOCK VS. WENDY JARDINE

*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT CCP 425.16

FILED BY: Wendy JARDINE

TENTATIVE RULING:

Defendant Wendy Chapin Jardine ("Defendant") brings this special motion to strike the complaint (the "Complaint") of Plaintiff Carter Chapin Hallock ("Plaintiff"). The motion is brought pursuant to Code of Civil Procedure section 425.16, California's Anti-SLAPP Statute.

For the reasons discussed below Defendant's special motion to strike is GRANTED as to Plaintiff's claim for perjury.

Legal Standard for Special Motion to Strike

In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two-step approach courts take in ruling on an anti-SLAPP motion:

First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [citation] If the defendant makes the required showing, then burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. (*Id.* at p. 384.)

"[T]he only thing the defendant needs to establish to invoke the [potential] protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech." (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61 quoting *Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 307.) To do so, the defendant must show that the "conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)" of section 425.16. (*Id.* at p. 66.)

Subdivision (e) of section 425.16 states, in pertinent part:

[An] 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a ... judicial proceeding, or any other official proceeding authorized by law..." (Code Civ. Proc., § 425.16 subd. (e).)

If the statements or actions at issue were made before or in connection with a judicial proceeding, there is no separate requirement that the statements or actions be made in connection with a 'public issue.' (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Background: Facts Alleged in Complaint

Plaintiff, who is Defendant's son, alleges that Defendant hired him in 2017 as a part time employee to work for CMOUTS LLC, which is a company Defendant is a majority owner of. (Complaint, p. 2, ¶ 1, Attachment D.) In 2019, Plaintiff was promoted to a full-time employee and in 2020 Plaintiff was granted access to the bank accounts of CMOUTS. (Complaint, p. 2, ¶ 1.) Plaintiff alleges that he and Defendant "reached an oral, written, and implied agreement for consideration of 49% of CMOUTS LLC." (*Ibid.*) Plaintiff created an \$80,000 line of credit for CMOUTS LLC, that only he had access to. (*Id.* at p. 2, ¶ 3.)

On June 27, 2025, Defendant testified at a restraining order hearing that "the petitioner is a single member LLC," and that "on or about 3/16/2025, \$60,000.00 was deposited into the respondent's personal account..." (Complaint, p. 2, ¶¶ 4-6.) The civil case was related to a restraining order filed by the Sonoma County Sheriff's Office in relation to a carjacking Defendant was arrested for that involved Plaintiff and a 2023 Lexus vehicle for which ownership is currently at issue. (*Id.* at ¶ 9.)

The Complaint, filed on September 30, 2025, and served on Defendant on January 4, 2026, asserts claims against Defendant for: (1) perjury; (2) filing a false police report; and (3) replevin. (Complaint, pp. 1-5.) The perjury claim accuses Defendant of violating Penal Code section 148.5(a). (*Id.* at ¶¶ 14-16.) The perjury is based on Defendant's testimony at the restraining order hearing that (a) CMOUTS LLC is a single member LLC and (b) that \$60,000 was deposited into Plaintiff's personal account. The false police report claim is based on Defendant allegedly filing false felony charges of carjacking against Plaintiff. (*Id.* at ¶¶ 3, 6, 15.) The replevin claim is based on Plaintiff's desire for the Court to order the "immediate return of 2023 Lexus to Plaintiff's Contra Costa County Sheriffs to it can be retrieved by Plaintiff." (*Id.* at ¶¶ 6, 8, 9, 12, 15, 22.) Although the body of the Complaint does not clearly delineate the claims, the caption of the Complaint identifies them, as does the prayer for relief and the body of the Complaint.

All of Plaintiff's claims are somewhat related to the 2023 Lexus vehicle as there is a dispute between Plaintiff and Defendant as to who actually owns it, as the ownership of the vehicle is at issue due to it being in Plaintiff's name but in the possession of Defendant, which is related to a falling out over CMOUTS LLC. (Complaint, ¶ 6, Attachment D.) Apparently, on May 31, 2025, according to a police report attached to the Complaint, Plaintiff, the son of Defendant, entered into the residence of Defendant without permission and attempted to grab the purse from his mother's hands. (*Id.* at Attachment D.) Plaintiff struggled with Defendant and took the purse, causing Defendant to fall backwards on the floor and sustain an injury to her arm. Plaintiff took the keys to the Lexus from Defendant's purse and left. (*Ibid.*) Plaintiff was subsequently arrested for robbery, burglary, and for causing injury to an elder. (*Ibid.*) The charges were eventually dropped prior to a plea being entered. (*Id.* at ¶ 8.)

On February 3, 2026, Defendant filed the instant special motion to strike.

Discussion

Defendant argues that Plaintiff's Complaint rests entirely on allegations of Defendant's public participation, which means the statements attributed to Defendant constitute protected activity for purposes of California anti-SLAPP statute. (Motion to Strike, p. 4.) This is because the entire lawsuit is

based on an oral statement made in Court by Defendant and statements made in judicial proceedings are protected speech for anti-SLAPP purposes. (*Id.* at p. 5.)

Plaintiff argues that Defendant's notice of motion, special motion to strike, proposed order, and the declaration of Constantine Panagotacos are objectionable and should be stricken from the record. (Opposition, pp. 1-2.) Plaintiff argues that while lying in casual conversation is often protected, lying under oath in court is not. (*Id.* at p. 1.) Attachment A to Plaintiff's complaint shows that the LLC has two members, not one. (*Id.* at p. 2.) Plaintiff also asserts that encouraging a client to commit perjury is a disciplinary offense and that the proposed order contains false statements. (*Id.* at p. 2.) Plaintiff argues that *United States v. Alvarez* stands for the proposition that the government cannot punish lies simply because they are false, but that false statements are not protected when they fall into categories like perjury or making false statements to authorities. (*Id.* at p. 3.)

On reply, Defendant argues that Plaintiff does not address the arguments in the anti-SLAPP motion but rather attacks "the counsel of Defendant's attorney." (Reply, p. 1.) Defendant asserts that the relevant arguments were already addressed in Defendant's moving papers and need not be repeated. (*Ibid.*)

Protected Activity

Protected activity covered by section 425.16 includes a "statement or writing made before a ... judicial proceeding." (Code Civ. Proc., § 425.16(e).) It also includes "any written or oral statement made in connection with an issue under consideration or review by a ... judicial body." (*Ibid.*) A "statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) This also includes "qualifying acts committed by attorneys in representing clients in litigation." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056.)

"The anti-SLAPP statute's definitional focus is not the form of the plaintiff's causes of action but, rather, the defendant's *activity* that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92.) The statute does not "require that a defendant moving to strike under section 425.16 demonstrate that its protected statements or writing were made *on its own behalf* (rather than, for example, on behalf of its clients or the general public.)" (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.)

Here, the allegations in the Complaint relating to Plaintiff's perjury claim are based on statements made in a restraining order hearing in Sonoma County, case number 2503725, which is a judicial proceeding and is protected activity under Section 415.16(e)(1) of the Code of Civil Procedure. As such, Defendant has met her burden to "establish that the challenged claim arises from activity protected by section 425.16." (*Baral, supra*, 1 Cal.5th at 384.) As the activity related to statements made in a judicial proceeding, there is no need to show that it was also made in connection with a 'public issue.' (*Briggs*, 19 Cal.4th at 1118.)

With respect to Plaintiff's claim of filing a false police report, the burden is on Defendant to show that this claim arises from protected activity, but the Motion is silent on this issue. Thus, there will be no further analysis of whether Plaintiff's claim of filing a false police report is subject to Defendant's

Motion.

With respect to Plaintiff's replevin claim, the burden is on Defendant to show that this claim arises from protected activity, but the Motion is silent on this issue. Thus, there will be no further analysis of whether Plaintiff's replevin claim is subject to Defendant's Motion.

Probability of Success

As Defendant met her initial burden, the burden shifts to Plaintiff to "demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra*, 1 Cal.5th at p. 384.) "To show a probability of prevailing for purposes of section 425.16, a plaintiff must 'make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor.'" (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010, internal quotation marks omitted.)

To do this, "a plaintiff seeking to demonstrate the merit of the claim 'may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.'" (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 941 ("*Sweetwater*") quoting *San Diegans for Open Government v. San Diego State University Research Foundation* (2017) 13 Cal.App.5th 76, 95.)

The anti-SLAPP statute describes what evidence a court may consider at the second step. "It provides that '[i]n making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.'" (CCP §425.16(b)(2).) In lieu of an affidavit, declarations are allowed. (*Sweetwater, supra*, 6 Cal.5th at 941.)

Here, Plaintiff does not provide any affidavits or declarations in support but rather offers argument in relation to attachments to his complaint. (Opposition, pp. 1-3.) He argues that attachment A to his Complaint shows that CMOUTS LLC is not a one-member LLC but a two-member LLC. (*Id.* at p. 2.) The Court finds this document insufficient to show that CMOUTS LLC is a two member LLC. Plaintiff has not signed it and the portion where his name is identified states "Member or Manager," which makes it ambiguous. Further, it is an incomplete document as only page 2 of 2 is provided. Plaintiff also cites Exhibit H, which appears to reference his MEMORANDUM OF POINTS AND AUTHORITIES TO SUPPORT COMPLAINT: PERJURY, (PC 118), FILING A FALSE REPORT REPORT WITH A PEACE OFFICER (148.5), & REPLEVIN (CCP 512.020) PER EVID 622, EVID 210, 31 CFR 1010.230, CORP 17704.10 & CORP 17701.13 document, filed on the same day of the Opposition. Exhibit H purports to show Defendant "lying under oath in a cross-complaint. . ." which is outside the scope of the perjury claim Plaintiff asserts in the Complaint.

However, as Defendant points out in the Motion, there is no private right of action for perjury. (Motion, p. 5; citing *Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1429 ["There is no civil cause of action for 'perjury.' [Citations.] Perjury is a criminal wrong."].) Plaintiff's documentation does not defeat this.

Further, as Defendant argues, Plaintiff's claim for perjury is barred by the litigation privilege codified at Civil Code section 47. Civil Code section 47(b) sets for the so-called 'litigation privilege,' which broadly protects communications made during judicial proceedings. It defines a "privileged publication" to include one made in any "judicial proceeding." That section "has been given broad application," and is now "held applicable to any communication, whether or not it amounts to a publication [citations] and all torts except malicious prosecution." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 211-12.) It applies to "any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved." (*Id.* at p. 212.)

The publication "need not be pertinent, relevant, or material in a technical sense to any issue in the action; it need only have some connection or relation to the proceedings." (*Portman v. George McDonald Law Corp.* (1979) 99 Cal.App.3d 988, 991.) The privilege applies even where the testimony "is allegedly perjured and malicious." (*Id.* at 990.) "The resulting lack of any really effective civil remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say." (*Ibid.*)

"The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg, supra*, 50 Cal.3d at 212.) Here, Defendant's alleged testimony at the restraining order hearing relating to how many members CMOUTS LLC has, who owns the Lexus, or what account certain money was deposited in, are all statements made in a judicial proceeding and are thus privileged under the litigation privilege and unable to support a claim by Plaintiff against Defendant. Defendant has not met his burden of demonstrating the merit of his perjury claim by establishing a probability of success. The Court will GRANT Defendant's special motion to strike as to the perjury cause of action.

Attorney Fees

A "prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c).) The award of attorney fees is "mandatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The Court finds that Defendant is the prevailing party on this anti-SLAPP motion, and thus she is entitled to attorney fees.

As noted by Defendant, she will file a separate noticed motion for fees and costs. The Court will address the propriety of the amount of fees at that time.

Ruling

Based on the above, Defendant's Special Motion to Strike is **GRANTED** as to Plaintiff's Perjury Cause of Action.

27. 9:00 AM CASE NUMBER: C25-02746

CASE NAME: CARTER HALLOCK VS. WENDY JARDINE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WENDY JARDINE

TENTATIVE RULING:

Defendant Wendy Chapin Jardine ("Defendant") demurs to the cause of action for perjury from the complaint (the "Complaint") of Plaintiff Carter Chapin Hallock ("Plaintiff"). Because the Court has granted Defendant's simultaneously filed special motion to strike (anti-SLAPP) as to Plaintiff's cause of action for perjury, at Line 26, this instant demurrer is moot.